

U.P. E-Court Fees Rules, 2016

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State of Uttar Pradesh - Act

U.P. E-Court Fees Rules, 2016

UTTAR PRADESH

India

U.P. E-Court Fees Rules, 2016

Rule U-P-E-COURT-FEES-RULES-2016 of 2016

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U.P. E-Court Fees Rules, 2016

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No. 179/94/Sta.Ni.-2-2016-700(162)-14. - In exercise of the powers under Section 21 and Section 26 of the Court Fees Act, 1870 (Act No. 7 of 1870), the Governor is pleased to make the following rules, namely -

Part I ? Preliminary

1.

Short title, extent, and commencement.

(1)

These rules may be called the Uttar Pradesh E-Court Fees Rules, 2016.

(2)

These rules will be applicable to the whole State of Uttar Pradesh.

(3)

These rules shall come into force with effect from the date of their publication in the Gazette.

2.

Definitions.

(1)

In these rules unless there is anything repugnant in the subject or context, -

(a)

"Act" means the Court Fees Act, 1870 (Act No. 7 of 1870), as amended from time to time in its application to Uttar Pradesh;

(b)

"Agreement" means the agreement executed between the Appointing Authority and the Central Record-keeping Agency describing the terms and conditions of appointment of the Central Record-keeping Agency;

(c)

"Appointing Authority" means the Government or the Commissioner of Stamps, authorized by the Government in this behalf by notification in the Gazette for all or any specific purpose under these rules;

(d)

"Approved Intermediaries" means the Central Record-keeping Agency and the Authorized Collection Centres including all its offices and branches as appointed with the prior approval of the appointing authority to act as an intermediary between the Government and the Court Fees payer for collection of Court Fees under these rules;

(e)

"Authorized Collection Centre" means an agent appointed by the Central Record keeping Agency, with the prior approval of the Appointing Authority, to act as an intermediary between the Central Record-keeping Agency and the Court Fees payer for collection of Court Fees;

(f)

"Central Record-keeping Agency" means an agency appointed by the Appointing Authority of computerization of Court Fees Administration System in the State or at such places as the Appointing Authority may determine from time to time;

(g)

"Commissioner of Stamps" means the Inspector General of Registration appointed under Section 3 of the Registration Act, 1908;

(h)

"Department" means the Stamp and Registration/Department, Government of Uttar Pradesh;

(i)

"E-Court Fees" for purposes of Rule 32 of Uttar Pradesh Stamp Rules, 1942 in addition to kind of stamps prescribed therein, means an electronically generated impression to denote the payment of Court Fees;

(j)

"Form" means a form prescribed by the Appointing Authority Registrar General of the High Court from time to time;

(k)

"Government" means the State Government of Uttar Pradesh;

(l)

"Grievance Redressal Officer" means an officer of the department not below the rank of Assistant Commissioner of Stamps, authorized by the Commissioner of Stamps, or an officer not below the rank of Additional District Judge authorized by the Registrar General of the High Court or the District Judge, as the case may be.

(m)

"Collector" means the "collector" as defined in Indian Stamp Act, 1899.

(2)

Words and expressions not defined in these rules shall have the same meanings respectively assigned to them in the Court Fees Act, 1870 as amended from time to time in its application to Uttar Pradesh and the Information Technology Act, 2000.

Part II ? Appointment of central record keeping agency

3.

Eligibility criteria for appointment of Central Record-keeping Agency.

- Any public Financial Institution, Indian Scheduled Bank, a Company engaged in providing depository services appointed by Central Government, a company recognized by the Government either individually or in consortium may be eligible for appointment as Central Record-keeping Agency.

4.

Appointment of Central Record-keeping Agency.

- The Appointing Authority shall select and appoint by notification a suitable agency to function a Central Record-keeping Agency for the State to implement the Computerization of Courts Fees Administration System in specified courts of the State as declared by the Appointing Authority from time to time, in the order as mentioned below,

-

(a)

On the basis recommendations, if any, of the Central Government regarding appointment of Central Record-keeping Agency, issued from time to time;

(b)

By inviting technical and financial bids through a duly constituted expert Selection Committee.

5.

Term of appointment.

- The term of Central Record-keeping Agency appointed under these rules shall be five years.

6.

Central Record-keeping Agency of execute Agreement and Undertaking and Indemnity Bond.

(1)

The appointment of the Central Record-keeping Agency shall be on contract basis and the Agency shall enter into an Agreement with the Appointing Authority.

(2)

The Central Record-keeping Agency shall along with the agreement referred to in sub-rule (1) execute an Undertaking and Indemnity Bond, in favour of the Appointing Authority in the manner determined by the Appointing Authority from time to time.

7.

Termination of appointment of Central Record-keeping Agency.

(1)

The appointment of the Central Record-keeping Agency may be terminated earlier than the agreed term of appointment, on the ground of any breach of obligation, terms of agreement, the provisions of these rules or the Act financial irregularity or for any other sufficient reason which shall be recorded in writing.

(2)

The decision to terminate the appointment will be taken, -

(a)

after the Central Record-keeping Agency has been given a show-cause notice specifying the details of ground under sub-rule (1);

(b)

after the Central Record-keeping Agency has been given a reasonable opportunity of being heard;

(c)

after consideration of the explanation offered by the Central Record-keeping Agency; and

(d)

in case of breach of obligation, if the Central Record-keeping Agency fails to cure the breach within the period specified in the show-cause notice.

(3)

If the ground, on which the Appointing Authority has decided to terminate the appointment, is such that it has also caused loss of revenue to the State, the Central Record keeping Agency shall be bound to pay the entire amount of revenue loss, in addition to such amount of penalty as may be imposed by the Appointing Authority.

(4)

The amount or penalty that may be imposed under sub-rule (3) will not exceed twice the loss of revenue.

(5)

On termination of appointment under this Rule, the Central Record-keeping Agency shall transfer all the data generated during the period of appointment to the Government. After the termination of the appointment, the Central Record-keeping Agency, shall not use or cause to be used the data generated during the period of appointment for its business or any other purpose.

8.

Renewal of appointment of Central Record-keeping Agency.

(1)

The application for renewal of appointment of the Central Record-keeping Agency will be made to the Appointing Authority at least three months before the expiry of the running term of appointment.

(2)

The Appointing Authority may, before taking decision on the application for renewal of the appointment of the Central Record-keeping Agency, call for any information or record from the Department or the Central Record-keeping Agency or the Authorized Collections Centres or any other person or body.

(3)

The Appointing Authority, on being satisfied about the suitability of renewal, may renew the appointment.

(4)

If the Appointing Authority decides to renew the appointment, a fresh agreement referred in sub-rule (1) of Rule 6 and Undertaking and Indemnity Bond referred to in sub-rule (2) of Rule 6, will be executed with suitable amendments, if any.

(5)

The Appointing Authority shall have power to refuse the renewal of the term of appointment for reasons to be recorded in writing.

Part III ? Duties of the central record-keeping agency

9.

(1)

The Central Record-keeping Agency shall be responsible for - (a) creating need based infrastructure, hardware and software in designated places in consultation with the Appointing Authority and its connectivity with its main server;

(b)

creating need based hardware and software in designated Courts, and at authorized collection centres (the appoint of contract for payment of Court Fees) in the identified cities/places;

(c)

providing suitable and adequate training for operation and the use of the system to the personnel of Department/Courts as may be specified from time to time by the Appointing Authority;

(d)

facilitating in selection of Authorized Collection Centres for collection of Court Fees and issuing of E-court Fees Certificates;

(e)

co-ordinating between the central server of Central Record-keeping Agency, Authorized Collection Centres, offices of court supervisory and controlling officers/courts and any other office or places as may be specified by the Appointing Authority;

(f)

Collecting Court Fees in accordance with these rules and remitting it in the proper Head of Account of the State as directed from time to time by the Appointing Authority;

(g)

Developing and designing various reports as required under these rules and as directed by the High Court of Judicature at Allahabad and the Appointing Authority from time to time;

(h)

It shall be duty of the Central Record-keeping Agency be mutually agreed upon between, Appointing Authority, Central Record-keeping Agency and the court.

(2)

(a)

The Central Record-keeping Agency shall provide, transfer or share without the written permission of the Appointing Authority any hardware, software or any other technology or details in respect of the E-Court Fees project undertaken by it in the State to anybody other than the duly appointed Authorized Collection Centres.

(b)

Deploy the E-Court Fees application software after getting the security audit conducted by agency empowered by the Government. The security audit shall also be required whenever there is any change in the E-Court Fees application software subsequently.

(c)

Maintain the logs of all the activities on the server dedicated for E-Court Fees under guidelines of Indian Computer Emergency Response Team "CERT" on regular basis.

10.

Commission allowable to the Central Record-keeping Agency.

(1)

The Central Record-keeping Agency shall be entitled to such Commission on the amount of E-Court Fees collected as may be notified by the Government in the Gazette from time to time.

(2)

The commission payable to the Central Record-keeping Agency shall be subject to the condition specified in Rule 20.

11.

Specification of software to be used by the Central Record Keeping Agency.

(1)

The Central Record-keeping Agency shall have to design and use software in such a manner that the following minimum details are shown on the E-Court Fees certificate -

(a)

Distinguished Unique Identification number of the Certificate so that it is not repeated on any other certificate during the lifetime of the E-Court Fees system;

(b)

date and time of issue;

(c)

amount of Court Fees paid through the certificate in words and figures;

(d)

in case of E-Court Fees certificate above ninety-nine rupees, name of the litigant;

(e)

location code of the issuing branch or the Approved Intermediary; and

(f)

any other distinguishing mark on the certificate e.g. bar code etc., if any,

(2)

The Software to be used by the Central Record-keeping Agency shall also provide -

(a)

facility to COurt/Designed Officials to lock the E-Court Fees certificates used in a document;

(b)

facility to cancel the spoiled unused or not required E-Court Fees certificates;

(c)

necessary user ID and passwords to be used by the designated officials of the COurt to search, access and view any E-Court Fees certificate and access Management information System. The Central Record-keeping Agency shall provide these passwords to the concerned officials or the Courts as directed by the appointing Authority or Registrar General of the High Court;

(d)

availability of details of the issued E-Court Fees certificate on the E-Court Fees Server maintained by the Central Record-keeping Agency; and

(e)

availability of the different transaction details and reports relating to E-Court Fees on the websites of the Central

Record-keeping Agency which will be accessible to officers mentioned in sub-rule (2)(c).

Part IV ? Authorized Collection Centres

12.

Appointment of authorized Collection center.

(1)

The Central Record-keeping Agency may appoint agent(s), hereinafter called Authorized Collection Centres, with the prior approval of the Appointing Authority, to act as an intermediary between the Central Recordkeeping Agency and the Court Fees payer for collection of Court Fees. The service charges, commission, or fee etc. payable to Authorized Collection Centres shall be paid by the Central Record-keeping Agency at their own level as mutually agreed between them.

13.

Eligibility criteria for appointment of Authorized Collection Centre.

(1)

Any scheduled bank, any financial institution, an undertaking controlled by the Reserve Bank of India or the Financial Institution, Undertaking controlled by the Government, or a Post Office will be eligible for appointment as Authorized Collection centre, subject to prior approval of the Appointing Authority under Rule 12.

(2)

An individual may be appointed to act as Authorized Collection Centre on terms and conditions prescribed by the Appointing Authority in consultation with the Central Recordkeeping Agency.

(3)

An individual may also purchase E-Court Fees certificate online after registering on the website of the Central Record-keeping Agency by one self or may prescribe it through an authorized agent.

14.

Branches of Central Record-keeping Agency also to collect Court Fees.

- All the office/branches of the Central Record-keeping Agency in specified places of the State, as declared by Appointing Authority from time to time, may collect the payment of Court Fees for which separate approval from the Appointing Authority under Rule 12 will not be required.

15.

Infrastructure.

- All such Approved Intermediaries shall be equipped with the required computers, printers, internet connectivity, and other related infrastructure, which is necessary to implement the E-Court Fees System as specified by the Central Record-keeping Agency from time to time.

16.

Cost of Infrastructure.

- The cost of providing equipment and infrastructure referred to in Rule 15 will be borne by the concerned approved intermediaries.

17.

State may specify Courts/Places to establish counter.

- State may specify Courts/places to establish counter for issue of E-Court Certificate.

18.

Termination of agency of Authorized Collection Centres.

- The Appointing Authority may at any time, for reasons to be recorded in writing, advise the Central Recordkeeping Agency to terminate the agency of any Authorized Collection Centre and the Central Record-keeping Agency shall on such advice terminate the agency of such Authorized Collection Centre.

19.

Minimum Value limit of E-Court Fees certificates.

(1)

The E-Court Fees certificates may be issued only for amount exceeding Rs 5 (Rupees Five only) or such other minimum amount as may specified by the Appointing Authority from time to time.

(2)

The limit referred to in sub-rule (1) shall not apply to issue of E-Court Fees certificate for apply to issue of E-Court

certificate for payment of additional Court Fees under Rule 28.

Part V ? Remittance of the Court-Fees to Government Account

20.

Central Record-keeping Agency to deposit the Court Fees to Government Account and payment of commission to CRA.

(1)

The Central Record-keeping Agency shall reconcile and deposit the consolidated amount of Court Fees collected by its offices/branches and by its Authorized Collection Centres in the proper head of account of Court Fees, as may be notified from time to time by the Government, not later than the closure of business hours of next two working days from the date of such collection of Court Fees or within such period as may be prescribed to in the Agreement, which shall not be more than two working days.

(2)

The method of remittance of the Amount of Court Fees by the Central Recordkeeping Agency to the proper head of the State shall be through Electronic Clearing System (ECS), Real Time Gross Settlement (RTGS), National Electronic Fund Transfer (NEFT), Challan or as directed in writing by the Appointing Authority from time to time.

(3)

The deposit referred in sub-rule (1) shall be transferred to the Government account under specified head of account by means of depositing through challan in the banks authorised to carry on Government transactions. The Government Treasury or Authorized Banks and the Central Record-keeping Agency shall maintain the daily account of such deposits in a Register which shall be in such form as may be determined from time to time by the Appointing Authority.

(4)

The Central Record-keeping Agency shall be paid commission on the basis of the consolidated receipt statement submitted by it either on a monthly or bi-monthly basis as may be determined from time to time by the Government or in accordance with the Agreement. The commission shall be paid under this sub-rule after deducting Income Tax at source. The Central Record-keeping Agency shall be liable to pay other payable under Central or State Act.

Part VI ? Procedure for issue of E-Court fees certificate

21.

Application for E-Court Fees Certificate.

- A person desiring to pay Court Fees shall make an application in the prescribed Form to any of the branch of the Central Recordkeeping Agency or Approved Intermediaries with the requisite details for getting the E-Court Fees certificate.

22.

Mode of payment of Court-Fees.

- Payment of the amount of Courts Fees shall be made by Cash or Pay Order or Cheque or Bank Draft or Electronic Clearing System or Real Time Gross Settlement or any other mode of transfer of funds, as may be directed by the Appointing Authority.

23.

Issue of E-Court Fees certificate.

(1)

The Authorized official of approved Intermediary shall issue the E-Court Fees certificate under Rule 22.

(2)

The Approved Intermediary issuing the E-Court Fees certificate shall keep a daily account of issued E-Court Fees certificates in a Register to be maintained and take signature of purchaser or the authorized person, as the case may be, on the relevant column of the Register.

24.

Authorized official issuing the E-Court Fees certificate.

- The Approved Intermediary shall ensure that the person assigned the duty of issuing E-Court Fees certificate is a duly authorized representative of the Agency or Institution and has suitable credentials.

25.

E-Court Fees certificates paper and printing.

- The printing of E-Court Fees certificate shall be done by non-washable permanent black ink on a durable paper or in a manner determined by the Appointing Authority.

26.

Details of E-Court Fees certificate to be on website.

- The details of issued E-Court Fees certificate shall be made available on the E-Court Fees website maintained by the Central Record-keeping Agency and shall be accessible to any person authorized by the Appointing Authority in this behalf including the Courts holding a valid User ID and password which shall be provided by the Central Record-keeping Agency.

27.

Payment of additional Court Fees.

- Any person who holds E-Court Fees certificate and is required to pay on additional amount of Court Fees, may make an application in the Form prescribed with payment of such amount of additional Court Fees to the Approved Intermediary.

28.

Issue of E-Court Fees certificate for additional Court Fees.

(1)

The Approved Intermediary shall issue E-Court Fees certificate for such additional Court Fee on separate sheet of paper in the manner prescribed in Rules 21 to 25.

(2)

Judicial stamp may be used together with the E-Court Fees certificates to pay the Court Fees chargeable on a document under the Act.

29.

Re-Use of E-Court Fees certificate-prohibited.

(1)

E-Court Fees certificate used in a document shall not be used in any other document.

(2)

A document not in compliance with sub-rule (1) shall be deemed to be unstamped and shall be dealt with under the provisions of the Act.

30.

Distinguished Unique Identification Number of the E-Court Fees certificate.

- A Distinguished Unique Identification Number of the E-Court Fees certificate shall be written or printed at the top of the document.

31.

Verification and locking the details of E-Court Fees certificate.

- Courts, after making the enquiry envisaged by the Act, shall verify the correctness and authenticity of the E-Court Fees certificate used in the document by accessing the relevant website of the Central Record-keeping Agency, to verify its unique identification number with the help of a bar code scanner. After such verification, the Courts shall lock the E-Court Fees certificate by using user ID Code and password provided by the Central Record-keeping Agency to prevent re-use of such certificate.

The concerned officer shall not disclose the user ID and password provided by the Central Record-keeping Agency, and if the wrong and unauthorized use thereof results in a loss to the State Government, the concerned officer shall be held responsible for the same.

Part VII ? Refund of E-Court Fees

32.

Procedure for refund of spoiled/unused/not required E-Court Fees certificate.

(1)

An application for refund of 'spoiled' or 'misused' or 'not required' E-Court Fees certificate shall be made in the Form prescribed along with the E-Court Fees certificate to the Collector within whose jurisdiction the E-Court Fees certificate is required to be locked by the Court for use.

(2)

On verification by accessing the relevant website of the Central Record-keeping Agency, the Collector shall cancel and lock the verified E-Court Fees certificate and endorse "cancelled" on the original E-Court Fees certificate with his signature and seal. The procedure for refund prescribed under Chapter V of the Court Fees Act, 1870 shall apply

mutatis mutandis with such modifications as are necessary.

(3)
The Collector shall maintain a record of such cancelled E-Court Fees certificate in his office.

Part VIII ? Inspections, Audit and Appraisal of the Performance of the System

33.
Inspection of the Central Record-keeping Agency and the Authorized Collection Centres.

(1)
Officers authorized to inspect, any supervisory officer of the Department or any private or public sector technical-cum-audit expert/agency duly authorized by the Appointing Authority or by the Commissioner of Stamps in this behalf may inspect all or any of the branches/offices of the Central Record-keeping Agency and Approved Intermediaries located within its jurisdiction.

(2)
The Commissioner of Stamp may, however, at any time on receipt of a complaint or suo motu, direct any official of the Department to inspect any branch or office of the Central Record-keeping Agency or Approved Intermediaries and to submit a report, besides the regular inspections mentioned in sub-rule (1).

(3)
The Accountant General, Uttar Pradesh, Allahabad may also make audit of the receipts and remittances made by the Central Record-keeping Agency.

34.
Schedule to be followed for making Inspections and audit.

- All or any of the branches/offices of the Central Record-keeping Agency and Approved Intermediaries in the State will be inspected and audited as per the schedule provided by the appointing authority.

35.
Central Record-keeping Agency/Authorized Collection Centre bound to provide information.
- During such inspection the Inspecting Officer or the expert/agency may require the Officer In-charge of the inspected branch/office to provide any information on soft and or hard copy of any electronic or digital record related to the collection and remittance of Court Fees relating to any period of same and the concerned Central Record-keeping Agency or Approved Intermediary shall provide such information or (sic on) priority basis.

36.
Submission of Inspection report.
- The Inspecting officer and the technical-cum-audit expert/agency shall submit inspection report mentioning the omissions, violations, delays or irregularities, if any, and give suggestions and recommendations to the Commissioner of Stamps.

37.
Commissioner of Stamps to take appropriate action.
- The Commissioner of Stamps on receipt of inspection report shall take appropriate action in the matter and may (if so warranted by the circumstances) make recommendation to the Appointing Authority, including imposition of penalty and/or termination of appointment of Central Record-keeping Agency or the agency Authorized as Collection Centre. If the Commissioner of Stamps is also authorized by the Government to function as Appointing Authority, he will take appropriate action in that capacity.

38.
Appointing Authority to take appropriate action.
- The Appointing Authority may, after giving a reasonable opportunity of being heard to the Central Record-keeping Agency or the Agency authorized as Collection Centre, take any appropriate action as it deems fit on the basis of the inspection technical audit report and the recommendations of the Commissioner of Stamps.

Part IX ? Penalty for Omissions and Violations

39.
Penalty for delay in remittance to Government account.
- In case the Central Record-keeping Agency fails to remit the amount of collected Court Fees in proper Account Head of the State within the period stipulated in sub-rule (1) of Rule 20, the Central Record-keeping Agency shall be liable to pay penalty for the delay, besides the collected amount of Court Fees in the following manner -

Period of delay

Penalty

(i)

When the amount of court fees so collected is remitted on third working day or after that day but on or before seventh working day from the date of collection;

(i) Amount equal to the commission payable to the Central Record-keeping Agency;

(ii)

When the amount of court fees so collected is remitted after closing seventh working day from the date of collection.

(ii) In addition in to the penalty of imposed above compound penalty of one per cent per day of the amount of Court Fees shall also be imposed from the first day of default.

40.

Dispute regarding delay in remittance.

(1)

The Central Record-keeping Agency shall be given a reasonable opportunity of being heard to explain any delay in remitting the Court Fees and the consequent liability to pay penalty under Rule 39.

(2)

If the Commissioner of Stamps is satisfied that the delay in remittance was caused due to reason(s) beyond the control of the Central Record-keeping Agency (such as Act of God, Act of Civil or Military Authorities, fire, epidemic, war, terrorist acts, riots, earthquakes, storms, typhoons, floods), he may waive the penalty stipulated in Rule 39 either fully or partially.

(3)

In case of any dispute or the penalty imposed, the matter may be referred to the Government, and the decision of the Government shall be final.

41.

Central Record-keeping Agency responsible to indemnify the loss to the Government and penalty for loss.

(1)

If any act, omission, irregularity or violation on the part of the Central Record-keeping Agency or any of its Authorized Collection Centres has resulted in loss of revenue to the Government, the Central Record-keeping Agency shall indemnify such amount of loss of revenue along with interest calculated at the rate of one and half per cent per mensem and penalty not exceeding twice the loss of revenue to the Government.

(2)

The Central Record-keeping Agency shall, however be given an opportunity of being heard before taking a decision under sub-rule (1).

42.

Amount due and the penalty recoverable as arrears of land revenue.

- In case, the Central Record-keeping Agency does not to pay the amount due to the Government and the penalty imposed by the Appointing Authority under these rules, such amount may be recovered as arrears of land revenue.

Part X ? Arbitration

43.

Arbitration.

- All disputes and differences between the parties to the Agreement shall as far as possible, be settled amicably failing which all such disputes shall be referred to a mutually agreed arbitrator under the provisions of the Indian Arbitration and Conciliation Act, 1996 (Act No. 26 of 1996).

44.

Venue of Arbitration.

- The venue of arbitration shall be at Lucknow.

Part XI ? Public Grievance Redressal System

45.

Grievance Redressal Officers.

(1)

The Commissioner of Stamp will designate one or more Officers of the department, called "Grievance Redressal Officer" to look and enquire into the complaints received against the misconduct or irregularities of the Central Recordkeeping Agency or its Authorized Collection Centres of any other person of the department related with the implementation of these rules.

(2)

The Registrar General of the High Court or the District Judge, as the case may be, will designate an officer not below the rank of Additional District Judge called "Grievance

Redressal Officer" to look and enquire into the complaints received against the misconduct or irregularities of the officials of the Court related with the implementation of these rules.

46.

Complaint to Grievance Redressal Officers.

- Any person paying Court Fees who has a grievance in relation to the services of the Central Record-keeping Agency or any of its Authorized Collection Centre or any other person related with the implementation of these rules, may make a complaint to the concerned Grievance Redressal Officer with evidence to support the complaint.

47.

Proceedings before the Enquiry officer.

(1)

The Grievance Redressal Officer on receiving a complaint will immediately bring it to the notice of the Commissioner of Stamps or the Registrar General of the High Court or the District Judge, as the case may be.

(2)

The Commissioner of Stamps or the Registrar General of the High Court or the District Judge, as the case may be, may direct the Grievance Redressal Officer or any other Officer (to be called Enquiry Officer) to enquire into the complaint.

(3)

The Enquiry Officer shall give a reasonable opportunity of being heard to the parties concerned.

(4)

The Enquiry Officer shall submit the enquiry report to the Commissioner of Stamps or the Registrar General of the High Court or the District Judge, as the case may be.

48.

Action on the enquiry report.

(1)

On the basis of the enquiry report, the Commissioner of Stamps shall take appropriate action under these rules against the Central Record-keeping Agency or will make suitable recommendations to the employer of the concerned official for taking appropriate action.

(2)

On the basis of the enquiry report, the Registrar General of the High Court or the District Judge, as the case may be, shall take appropriate action against the officials of the court.

Part XII ? Management Information System/decision Support System

49.

Central Record-keeping Agency to furnish Management Information system and Decision Support System reports to the Department/Court.

(1)

The Central Recordkeeping Agency shall provide Login ID and password to the Commissioner of Stamps and the Registrar General of the High Court and to any or all such officers as they may direct in this regard, for online access of the required information report in the E-Court Fees System.

(2)

The Central Record-keeping Agency shall furnish such information including the following information reports to the Commissioner of Stamps and the Registrar General of the High Court and to any or all such other officers as they may

direct -

(a)

Audit trail report. - Tracking of all system based actions performed by users of collecting branches/offices of the Central Record-keeping Agency and the Authorized Collection Centres pertaining to any specified day or period;

(b)

Government payable reports. - Authorized Collection Centre-wise (including collection branches of the Central Record-keeping Agency) Total collection report of any specified day or period;

(c)

Additional Court Fees certificate reports. - For all or any of the collecting branches/offices of the Central Record-keeping Agency and Authorized Collection Centres pertaining to any specified day or period;

(d)

Locked E-Court Fees certificate reports. - Relating to all or any of the Courts pertaining to any specified day or period;

(e)

Remittance reports. - A district-wise details of the remittances made by the Central Record-keeping Agency into the Government Account pertaining to any specified day or period;

(f)

Report of cancelled E-Court Fees certificates. - Report pertaining to specified day or period;

(g)

Certificate Generation reports. - Report of E-Court Fees certificates generated for any/all collecting branches/offices of the Central Record-keeping Agency and the Authorized Collection Centers pertaining to any specified day or period;

(h)

Yearly Court Fees Collection reports. - Yearly report of Court Fees collected by any/all of the collecting branches/offices of the Central Record-keeping Agency and the Authorized Collection Centers;

(i)

Court Fees Type Collection report - Showing category of document-wise monthly Court Fees collections of any calendar year for any/all collecting branches/offices of the Central Record-keeping Agency and the Authorized Collection Centers;

(j)

Court Fees monthly collection report - Court Fees monthly collection report of any calendar year for any/all of the collecting branches/offices of the Central Record-keeping Agency and the Authorized Collection Centers; and

(k)

Any other report or information as may be required by the Commissioner of Stamps from time to time.

Part XIII ? Role of Treasury

50.

Treasury to verify daily remittances.

- The Treasury Officer shall verify' from the account scroll received from the branch of the bank carrying on the work of Government Business Branch, the details of the daily remittances of Court Fees made by the Central Record-keeping Agency into the Government Account referred to in Rule 20.

Part XIV ? Delegation of Powers

51.

Appointing Authority may delegate all or any of its powers.

- The Appointing Authority by making an order in writing may delegate all or any of its powers and/or functions to the officer(s) of the department.

52.

Power to amend the rules.

- The Government may amend these rules by notification in the Gazette.

53.

Saving.

- In case of any conflict between these rules and the U.P. Stamp Rules, 1942, these rules shall prevail.

Part XV ? Implementation

54.

The facility of payment of E-Court Fee through the E-Court Fee Administration System shall come into effect in the High

Court and the District Courts from such dates as mutually agreed between the Appointing Authority, Central Record-keeping Agency and the High court and upon such date being notified by the Registered General of the High Court.

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